**No. 25-2247**

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**IN THE**
**United States Court of Appeals for the Second Circuit**

Gideon Rapaport,
Plaintiff-Appellant,

– v. –

Abigail Finkelman,
Defendant-Appellee.

On Appeal from the United States District Court for the Southern District of New York
D.C. No. 1:24-cv-05942; JGLC

# BRIEF FOR APPELLEE ABIGAIL FINKELMAN

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# JURISDICTIONAL STATEMENT

The District Court had jurisdiction pursuant to 28 U.S.C. § 1332(a)(2), because Plaintiff-Appellant Gideon Rapaport is a Canadian citizen, Defendant-Appellee Abigail Finkelman is a New York citizen, and the amount in controversy was alleged to exceed $75,000. Complaint ¶¶ 1–3. On August 29, 2025, the District Court issued an opinion and order granting Finkelman's motion to dismiss, denying as moot Rapaport's motion for sanctions under the District Court's inherent authority, and denying as moot Finkelman's motion for sanctions under Fed. R. Civ. P. 11(c). The District Court's opinion and order invited Finkelman to file a renewed motion for sanctions under Fed. R. Civ. P. 11(c).

Although there are other pending motions and proceedings in the District Court (including Finkelman's renewed motion for sanctions and an alternative motion for attorney's fees and costs under Civil Rights L. § 70-a(1)(a)), and there is not yet a judgment from the District Court, Rapaport filed a timely notice of appeal from the August 29, 2025 opinion and order, the District Court's opinion and order is (at least arguably) a "final decision" as to Rapaport's claims under 28 U.S.C. § 1291.

## COUNTERSTATEMENT OF ISSUES PRESENTED FOR REVIEW

1. Did the District Court err in granting Finkelman's motion to dismiss for failure to state a claim with prejudice?

2. Did the District Court err in denying as moot Rapaport's motion for sanctions under the District Court's inherent authority because that motion was predicated on claiming Finkelman's dismissal arguments were frivolous, and the District Court adopted Finkelman's dismissal arguments?

3. Can Rapaport raise arguments concerning any other matter as a part of this appeal when his notice of appeal was only from the District Court's August 29, 2025 decision, and there was no other final decision or judgment from which he could yet appeal?

## COUNTERSTATEMENT OF THE CASE

### A. Factual Allegations

Accepting the allegations in Rapaport's complaint, App'x 1–8 ("Complaint") as true, his claims concerned a series of posts by Finkelman on X (formerly known as Twitter).[1] Finkelman has an account on X under the name "@clapifyoulikeme." Complaint ¶ 11.

On July 28, 2023, Rapaport filed a pro se complaint in another action before the District Court, *Rapaport v. Iyer et al.*, No. 1:23-cv-06709 (S.D.N.Y.) ("Rapaport I").[2] Complaint ¶ 9. In Rapaport I, Rapaport asserted claims for defamation, defamation by implication, defamation per se, invasion of privacy and false light, and intentional infliction of emotional distress against three John Doe defendants. App'x 82–98 ("Rapaport I Complaint"). The complaint in Rapaport I was later amended, with Rapaport represented by his now-former counsel Richard A. Altman, naming three individuals as defendants. App'x 100–20 ("Rapaport I Amended Complaint"). Among other things, the Rapaport I Complaint alleged that the defendants in that case "forged a document" by adding "a corporate headshot style photograph of the Rapaport" to a document he claimed "was in the style of a 'wanted' or 'public enemy' poster" and added "the bolded and capitalized text 'DO NOT ADMIT.' " Rapaport I Complaint ¶ 7. Rapaport alleged in Rapaport I that the defendants used this supposedly fictitious

[1] All of Finkelman's relevant posts are attached to and incorporated in the Complaint. App'x 9–46.

[2] The original complaint in Rapaport I was enclosed in support of Finkelman's motion to dismiss before the District Court.

document to stage or forge a photograph that showed the document posted "at the guarded security gate at 601 Lexington Avenue, New York," the office of Rapaport's former employer, Kirkland & Ellis LLP. *Id.* ¶¶ 6–9.

On August 6, 2023, Finkelman, using her X account, made a "thread" (a series of connected posts) discussing the Rapaport I lawsuit. Complaint ¶ 11.

## SUMMARY OF THE ARGUMENT

Rapaport's claims against Finkelman are, by their own terms, factually and legally insufficient to state a claim. The District Court properly granted the motion to dismiss with prejudice, and thereby properly denied-as-moot Rapaport's un-noticed sanctions motion because it was predicated on arguing that Finkelman's arguments (which the District Court adopted as to each issue it reached in the MTD Decision) were purportedly not just frivolous, but entirely lacking in support according to him.

As to Rapaport's defamation claim against Finkelman, the District Court's grant of the motion to dismiss with prejudice should be affirmed for any of four independent reasons. First, Finkelman's statements at issue in Rapaport's Complaint are protected by Civil Rights Law § 74, which provides absolute immunity for statements made by "any person, firm or corporation" that publishes "a fair and true report of any judicial proceeding...." Civil Rights L. § 74. An unambiguous and copious set of precedents in this Court, the District Court, and New York State courts confirm this immunity applies to statements regardless of whether they are drawn directly from filings in the judicial

proceeding (rather than "background material" directly relevant to that proceeding), regardless of whether the statement is in the form of words or media, and is applied liberally to protect open discourse about judicial proceedings so long as the statement does not imply conduct beyond what is at issue in the proceeding. Second, even if not immunized, Finkelman's statements are not actionable as a matter of law. Third, even if not immunized and even if actionable, Finkelman's statements were true because they adopted Rapaport's representation that the photograph at issue was fake. So, even taking his allegations as true, her statement (posting the photograph) was unquestionably true. Fourth, even if not immunized, actionable, and plausibly false, Finkelman's statements still cannot give rise to a defamation claim because New York law requires those statements be made with actual malice, which Rapaport did not and cannot plausibly allege.

## STANDARD OF REVIEW

This Court "review[s] de novo a district court's dismissal of a complaint pursuant to Rule 12(b)(6), construing the complaint liberally, accepting all factual allegations in the complaint as true, and drawing all reasonable inferences in the plaintiff's favor." *Romanova v. Amilus Inc.*, 138 F.4th 104, 108 (2d Cir. 2025). This Court reviews the denial of a motion for sanctions for abuse of discretion. *Int'l Techs. Mktg., Inc. v. Verint Sys., Ltd.*, 991 F.3d 361, 367 (2d Cir. 2021). Abuse of discretion can be found when the district court's decision was the result of "an erroneous view of the law or ... a clearly

erroneous assessment of the evidence." *Enmon v. Prospect Capital Corp.*, 675 F.3d 138, 143 (2d Cir. 2012).

## ARGUMENT

This Court should affirm the District Court's grant of Finkelman's motion to dismiss Rapaport's claims with prejudice. The two claims asserted — defamation under New York law and "false light and invasion of privacy" under New Jersey law — were procedurally and substantively defective in multiple respects, including the multiple grounds identified in the MTD Decision (along with others). Because this Court reviews the grant of a motion to dismiss de novo, the grounds the District Court reached, and any others, can be a sufficient ground to affirm that decision. However, the District Court's considered reasoning is more than sufficient, and no additional analysis is required here.

### I. The District Court's grant of the motion to dismiss with prejudice should be affirmed

### A. Rapaport failed to state a claim for defamation against Finkelman

Under New York law, a defamation claim must allege "(1) a false statement about the [complainant]; (2) published to a third party without authorization or privilege; (3) through fault amounting to at least negligence on [the] part of the publisher; (4) that either constitutes defamation per se or caused 'special damages.' " *Fuji Photo Film U.S.A., Inc. v. McNulty*, 669 F. Supp. 2d 405, 411 (S.D.N.Y. 2009) (alterations in original) (quoting *Gargiulo v. Forster & Garbus Esqs.*, 651 F. Supp. 2d 188, 192 (S.D.N.Y. 2009)).

However, when the statement alleged to be defamatory is a "communication in a place open to the public or a public forum in connection with an issue of public interest" New York considers the defamation case to be an "action involving public petition and participation" and requires the plaintiff to prove that "any communication which gives rise to the action was made with knowledge of its falsity or with reckless disregard of whether it was false," i.e., actual malice, rather than mere negligence. Civil Rights L. § 76-a(1)(a)(1), (2). The term "public interest" is "construed broadly, and shall mean any subject other than a purely private matter." *Id.* § 76-a(1)(d). This includes public statements concerning

*[Transcription ends here. The filed brief continues on the next page.]*

## CONCLUSION

For these reasons, this Court should affirm the District Court's decision granting Finkelman's motion to dismiss and denying Rapaport's motion for sanctions, with costs for this appeal being taxed to Rapaport.

Dated: February 26, 2026, New York, NY

Respectfully submitted,

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## CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because this brief contains 1,428 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because this brief has been prepared in a proportionally spaced typeface using LaTeX in 14-point EB Garamond.

Dated: February 26, 2026

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| /s/ Max Rodriguez | February 26, 2026 |
| Signature | Date |

## CERTIFICATE OF SERVICE

I hereby certify that on February 26, 2026, a true and correct copy of the foregoing was served via ACMS to all counsel of record or parties pro se.

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|---|---|
| /s/ Max Rodriguez | February 26, 2026 |
| Signature | Date |